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Chief Execu... ...ficer

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Re: Regulatory Assessment of 3-AD® (Dehydroandrosterol) as a Dietary Ingredient

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This letter responds to your request for an assessment of the regulatory status of the Company's 3-AD® (Dehydroandrosterol (DHA)) ingredient under two federal regulatory frameworks: (1) as a "dietary ingredient" for use in dietary supplements under the Dietary Supplement Health and Education Act of 1994 (DSHEA), which amended the Federal Food, Drug, and Cosmetic Act (FDCA); and (2) as an "anabolic steroid" under the Designer Anabolic Steroid Control Act of 2014 (DASCA) and corresponding regulations. As discussed in more detail below, it is our opinion that 3- AD® (1) qualifies as a dietary ingredient and can lawfully be marketed as long as it meets the regulatory requirements, and (2) is not a prohibited anabolic steroid. The bases for these conclusions are presented below.

I. Background on 3-AD®

We understand that the Company markets its 3-AD® ingredient (Dehydroandrosterol (DHA)) for use in dietary supplements. You indicated that DHA is a steroid metabolite naturally produced in the body (although [redacted] produces DHA through a synthetic manufacturing process). Chemically, it is known as androst-5-ene-3α,17β-diol, among other synonyms. U.S. Patent No. 10,632,130 (granted April 28, 2020) describes 3-AD® as an "endogenous, androgenic corticoid metabolite" used in a dietary supplement to promote muscle growth. DHA is understood to be a byproduct of adrenal steroid metabolism. We also understand that DHA is a metabolite of dehydroepiandrosterone (DHEA), a well-known adrenal hormone with a long history of use in dietary supplements.